RAMBAM'S INTRODUCTION TO THE MISHNAH

Six Orders, One Design: The Structure of the Mishnah

Rambam's Intro to the Mishnah, Part 4

Source: The Rambam's Introduction to the Commentary on the Mishnah (Rav Shilat's edition), the structure of the Mishnah

Shiur: Part 4 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 27 May 2025 (a few days before Shavuot)

These notes are based on the Sofer.ai transcript of the recording.

Before Shavuot: Why We Read Ruth

There are many reasons for the old custom, Sephardi and Ashkenazi alike, of reading **Megillat Ruth** on Shavuot. One fits this series exactly.

On Shavuot we think of Sinai and the **written** Torah, and there's a danger of thinking that's all Torah is. **No book shows the authority of the Sages better than Ruth.**

> An Ammonite or Moabite may not marry into Israel, **even after conversion**. (Today we can't identify anyone, so all converts may marry; in theory a traceable male Moabite couldn't.) **לא יבא עמוני ומואבי בקהל ה׳... עד עולם.**

So **David** was taunted by **Do'eg**, a Sage of his time, that his lineage was flawed: his great-grandmother **Ruth** was a Moabite. Only the Sages' oral tradition saves him: **מואבי ולא מואבית**, a male Moabite, **not a female**, though the Torah's wording would normally include both.

Without the Oral Torah, Ruth wouldn't be someone we respect, and David couldn't be king. So as we celebrate receiving the written Torah, we read Ruth to remember that **the Oral Torah is an essential part of it.**

Recap: Parts 1–3

- Everything taught orally to Moshe was taught so that **every Jew heard it at least four times**; Moshe reviewed it all before he died.
- **Each generation derived new laws** and passed them on with what came from Moshe. Differences arose, but mostly there was **consensus**.
- **A prophet has no authority in interpretation**: **1,000 prophets, 1,001 Sages, the Sages win**. **לא בשמים היא**: everyone has an equal right to derive, **provided the method is right**, and we follow the majority. His one power: a **temporary suspension** of a law, never involving idolatry.
- **Rabbi Yehudah HaNasi**, "**Rebbi**," *the* teacher, third century, gathered it all into the **Mishnah**, in **five categories**:

#	Category	Example	Dispute?
1	From Moshe, **with** a scriptural support the Sages later found	Eye for eye = **money**; *pri etz hadar* = **etrog**	**Never**
2	From Moshe, **no** scriptural support	**Black tefillin**	**Never**
3	**Derived** by each generation's Sages; probably **most** of the Mishnah. Rebbi records minority views so you know a community following one **has a source**		**Yes**, more as generations passed
4	**Rabbinic fences** (*gezerot*)	Meat and milk extended to **poultry**	**Yes**
5	**Takkanot**: advice that became halachah	**Ezra**: wash clothes on **Thursday**, not Friday	**Yes**

The Rambam is **always particular** in the Mishneh Torah to mark the difference: a fence is **הרחיקו** / **אסרו**, you may not go against it; a takkanah isn't a fence protecting a Torah law, "just **good practice**, how to become better people." Of course we follow it.

Tonight: A Tour of the Whole Mishnah

"I don't think anyone did it before him, and I don't think anyone has since. **Anyone who's studied Mishnah will appreciate how beautifully he puts it.**"

People learn Mishnah and Gemara their whole lives and never ask:

- Why does **Seder Nashim** put **divorce** (*Gittin*) **before marriage** (*Kiddushin*)?

- Why is **Avot**, ethics, in **Nezikin**, *damages*?

- Why does **Moed** go **Shabbat → Pesach → Yom Kippur → Sukkot → Rosh Hashanah**?

"For the Rambam, **before you can learn Mishnah and Gemara you need a framework.** He gives you the framework."

The Six Orders

#	Order	Covers
1	Seeds ,**זרעים**	Mitzvot of the **produce of the land**: mixtures, **shemittah**, **orlah**, **terumot**, **ma'asrot**, other gifts
2	Times ,**מועד**	**Shabbat and the festivals**: what's obligatory, forbidden, permitted
3	Women ,**נשים**	**Relationships**: **yibbum**, **chalitzah**, **ketubah**, **kiddushin**, **gittin**
4	Damages ,**נזיקין**	Money between people: commerce, partnerships, inheritance, torts
5	Holy ,**קדשים** things	**Sacrifices**
6	Purities ,**טהרות**	Purity and impurity

Moed is better translated **"times"**: **מועד** is an **appointment**. Shabbat and the festivals are **appointments with Hashem**. Rebbi called each division a **סדר**, an "order" or structure.

Why this order

	Reason
Seeds first	**We eat from the land**, and without food **we can't serve Hashem**
Seeds → Times	**Mishpatim**: **שש שנים תזרע את ארצך** comes before **שלש רגלים תחג לי בשנה**
Women → Damages	Mishpatim again: **וכי ימכר איש את בתו לאמה** before **וכי יגח שור**
Holy things	The sacrifices are in **Vayikra** (Vayikra, Tzav)
Purities last	Purity follows sacrifices **in Vayikra itself**: Tazria, Metzora, Acharei Mot

Inside each order: orders → tractates (**מסכתא**) **→ chapters** (**פרק**) **→ individual laws**, which Rebbi called **הלכה**. "We call each one a *mishnah*; the **Yerushalmi** calls it a *halachah*."

Order 1: Zera'im (11 tractates)

Why open with Berachot? "**The best doctor**, wanting to keep a healthy person healthy, **starts with diet**. You can take the best medications and spend hours in the gym, but without a good diet it's worthless." So Rebbi, **"Hashem being with him,"** began with **blessings**: **you can't eat without first making a blessing**.

Berachot also covers blessings on **mitzvot**, to make the subject complete, and **Keriat Shema**, the only non-blessing in it, because **you can't discuss the blessings of the Shema without the Shema itself**. That's why it opens **מאימתי קורין את שמע**.

#	Tractate	Why here
1	**Berachot**	Food first; and **before eating, a blessing**
2	**Pe'ah**	The **only gift given while the crop is still standing**: leave the corner unharvested. All others are post-harvest
3	**Demai**	With Pe'ah, the **only two that go to the poor** (doubtfully-tithed produce may be fed to them)
4	**Kilayim**	Follows Pe'ah **in the Torah**: Kedoshim's **פאת שדך** then **שדך לא תזרע כלאים**
5	**Shevi'it**	Kedoshim's **orlah** would be next, but **shemittah comes whether you like it or not**, while orlah only when you plant a fruit tree. **More frequent first.** And shemittah has **its own parashah** (Behar); orlah a few verses
6	**Terumot**	After harvest, **the first gift**: to the **kohen**, about **2%**
7	**Ma'asrot** (first tithe)	Next, to the **Levi**: **10%**
8	**Ma'aser Sheni**	The second tithe, **eaten in Jerusalem**
9	**Challah**	Now I **grind** and **make dough**
10	**Orlah**	Grain is done; now **fruit**. (Orlah still applies **outside Israel**: no fruit for the first three years)
11	**Bikkurim**	**First fruits** brought to the Temple

Order 2: Mo'ed (12 tractates)

#	Tractate	Why here
1	**Shabbat**	Most important, and **every seven days**
2	**Eruvin**	Carrying and the eruv belong **with Shabbat**
3	**Pesachim**	The **first mitzvah** given as a nation (**Bo**), and **first in Emor's** festival list
4	**Shekalim**	**Ki Tisa**, near Bo
5	**Yoma** (Yom Kippur)	**Acharei Mot**, next in the Torah
6	**Sukkah**	The remaining Torah festivals (Emor). Before Beitzah, because **Sukkot has many more mitzvot**
7	**Beitzah**	Shavuot has no tractate; its equivalent is **the general laws of Yom Tov** (the class's daily-halachah series draws mostly on Beitzah)
8	**Rosh Hashanah**	The **last** Torah festival remaining
9	**Ta'anit**	Now **the prophets**: the fasts, instituted by **Yeshayahu**-era prophets (**צום הרביעי, החמישי, השביעי, העשירי**)
10	**Megillah**	Also prophetic, but **later**: **Mordechai**
11	**Mo'ed Katan**	Chol HaMo'ed, mourning: on the "small festivals" **fasting and eulogies are forbidden**
12	**Chagigah**	The festival offering is **for men only**; everything else applies to **men and women**, so it goes last

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Order 3: Nashim (7 tractates)

Why open with *Yevamot*, a rare case?

Yibbum: if a man dies **childless**, his brother must **marry** the widow or **release** her through **chalitzah**. The Torah creates a **bond** (*zikah*) that can't just be left; otherwise she could never remarry.

"Does this still happen?" "**100%.** It happens in Israel. It's never happened in our beit din yet; it's one of the things I'd want to do one day." **Recently married soldiers who fell**: their brothers must do yibbum or chalitzah. *What if there's no brother?* "Then she's free."

The class tried: *it's earlier in the Torah?* No: yibbum is in **Ki Teitzei**, near the end.

The answer: it's the only compulsory one. "Marriage is a mitzvah, but at the end of the day **you choose**. Yibbum: **once it happens, it must be done.**" **פתח בדבר המחויב**: begin with the obligatory.

#	Tractate (Rambam's order)	Why
1	**Yevamot**	**Compulsory**
2	**Ketubot**	**Marriage** proper (not betrothal), like yibbum
3	**Nedarim**	A husband may **annul his wife's vows**
4	**Nazir**	**A kind of vow**
5	**Gittin**	When marriage breaks down: **divorce**
6	**Sotah**	**Another kind of divorce**: the wayward wife
7	**Kiddushin**	(Why last? below)

"Oh wow, I've just realised something." In **our printed Shas** the order is **Nedarim, Nazir, Sotah, Gittin, Kiddushin**, but **the Rambam's** has **Gittin before Sotah**. "I have to research this."

Why does *Kiddushin*, betrothal, come last?

Ketubot first, fine: like Yevamot it's **marriage**, not betrothal. **But why after divorce?**

"The only answer I have": it follows the verse. Ki Teitzei: **כי יקח איש אשה… וכתב לה ספר כריתת… ויצאה מביתו והלכה והיתה לאיש אחר**. *Kiddushin* is learned from **והיתה לאיש אחר**, which comes **after** the get, and the Sages compare **הויה ליציאה**, marrying to leaving.

A later commentator's reason (not the Rambam's), which the Rabbi "finds funny": **מקדים רפואה למכה**, Hashem sends the **cure before the illness**. "Marriage can be beautiful, but it can also be a disaster. **People wouldn't marry if they knew they couldn't get out.** So put the divorce first: *don't worry, you can get divorced.*"

(Kiddushin = betrothal / engagement, the first stage; Ketubot = marriage itself.)

Order 4: Nezikin, the First Half

#	Tractate	About	Why here
1	**Bava Kamma**	**Damages**: what you or your property do (your **ox**, fire, **pit**, your hands; your car)	**"A judge shouldn't judge until he has removed the things causing damage."** Deal with the hazards first
2	**Bava Metzia**	**Deposits**, claims, renting; movables	Mishpatim: after the ox come **the four kinds of guardian**
3	**Bava Batra**	**Land**, partnerships, the wording of **contracts**	**Mostly rabbinic logic**, little scriptural source, so **last** of the three
4	**Sanhedrin**	**The judges**	They judge all the above
5	**Makkot**	**Lashes**	Administered by the judges
6	**Shevuot**	**Oaths**	Also administered by the judges
7	**Eduyot**	**Testimonies**	
8	**Avodah Zarah**	**Idolatry**	A judge must know **exactly how each idol is worshipped**: death applies only to worship in **its own** manner
9	**Avot**		**Next time**
10	**Horayot**	**Mistaken rulings** of the Sanhedrin and dayanim	

Is Makkot its own tractate? The Rambam says yes. **One opinion in Tosafot**: it's a **continuation of Sanhedrin**. That matters for a **siyum**, in the Nine Days to eat meat, or for firstborns on **Erev Pesach**: on that view, finishing *Makkot* **isn't** finishing a tractate.

Summary

1. **Ruth on Shavuot: מואבי ולא מואבית**. Without the Oral Torah, no David.
2. **Five categories** in the Mishnah: received with/without support (**never disputed**); derived, fences, takkanot (**disputable**).
3. **Six orders: Seeds** (food comes first) → **Times** → **Women** → **Damages** (all following **Mishpatim**) → **Holy things** → **Purities** (Vayikra). Then tractate → chapter → *halachah*.
4. **Zera'im** opens with **Berachot** ("the best doctor starts with diet"), then follows the **gifts in the order they arise**, from Pe'ah standing in the field to Challah in the dough, then fruit.
5. **Mo'ed:** Shabbat; Pesach (first mitzvah); Torah order (Shekalim, Yom Kippur); remaining festivals; **prophetic** fasts, then **Megillah**; Chagigah last, as it's **men only**.
6. **Nashim: Yevamot first, the one compulsory case**; Kiddushin last **because the verse puts the get first** (or: **the cure before the illness**).

7. **Nezikin: remove the hazards first** (Bava Kamma); then the judges and their tools; Avodah Zarah so judges know idolatry precisely.

Coming Up

After Shavuot (no shiur next week): why Avot sits in Nezikin, where the Rambam digresses at length on character, for everyone and for dayanim; Orders 5 and 6; and then the Sages' **aggadah and derush**, "the Rambam has his unique interpretation."

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